

8.12 मर्चेट को इनवॉइस (बिल) नंबर की सीरीज देनी होगी। सर्विस प्रोवाइडर मर्चेट की ओर से ग्राहक को बिल जारी करेगा।

8.14 **माल का मालिकाना हक:** जब तक सामान ग्राहक को नहीं मिल जाता, तब तक उसका मालिकाना हक और नुकसान का जोखिम (Risk) मर्चेट का होगा।

8.16 मर्चेट यह दावा नहीं करेगा कि वह सर्विस प्रोवाइडर का एजेंट या पार्टनर है। यह रिश्ता एक "इंडिपेंडेंट कॉन्ट्रैक्टर" का है।

8.18-8.20 मर्चेट सर्विस प्रोवाइडर के ब्रांड नाम या ट्रेडमार्क का गलत इस्तेमाल नहीं करेगा।

8.22-8.23 **शिकायत निवारण (Grievance):** सर्विस प्रोवाइडर का ग्रीवेंस ऑफिसर ही मर्चेट का ऑफिसर माना जाएगा। वह ग्राहकों की शिकायतों पर रिफंड या वापसी का फैसला ले सकता है, जो मर्चेट को मानना होगा।

8.24 मर्चेट कोई गलत व्यापारिक तरीका (Unfair Trade Practice) नहीं अपनाएगा और न ही खुद ग्राहक बनकर अपने सामान के फर्जी रिव्यू लिखेगा।

9. बौद्धिक संपदा (Intellectual Property)

9.1 **ब्रांड नाम:** मर्चेट स्वीकार करता है कि ब्रांड नाम और प्लेटफॉर्म पर पूरा अधिकार सर्विस प्रोवाइडर का है। मर्चेट की गतिविधियों से जो भी साख (Goodwill) बनेगी, वह सर्विस प्रोवाइडर की ही मानी जाएगी।

9.2 **कंटेंट:** सर्विस प्रोवाइडर के बिजनेस और कंटेंट पर उसका मालिकाना हक बना रहेगा। यदि मर्चेट अपनी कोई जानकारी या फोटो देता है, तो वह सर्विस प्रोवाइडर को उसे इस्तेमाल करने और उसमें बदलाव करने का मुफ्त अधिकार (License) देता है।

10. गोपनीयता (Confidentiality)

10.2 **शर्तें:** दोनों पक्ष एक-दूसरे की गोपनीय जानकारी को सुरक्षित रखेंगे। इसे किसी तीसरे व्यक्ति को नहीं बताया जाएगा, सिवाय उन कर्मचारियों के जिन्हें काम के लिए इसकी जरूरत है।

10.4 **वापसी:** समझौता खत्म होने पर या मांगे जाने पर, सारी गोपनीय जानकारी और दस्तावेज वापस करने होंगे या उन्हें नष्ट (Destroy) करना होगा।

10.5 **प्राइवैसी:** मर्चेट का व्यक्तिगत डेटा प्लेटफॉर्म की 'प्राइवैसी पॉलिसी' के अनुसार सुरक्षित रहेगा।

E-Commerce Services Agreement

Legal Notice This document is an electronic record under the **Information Technology Act, 2000**. It is generated by a computer system and does not require any physical or digital signature.

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Introduction to the Agreement This agreement shall be deemed effective from the day you accept it via your registered email or click the "**I Agree**" button. This agreement is between the following two parties:

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1. **Merchant (Seller):** You (an individual or legal entity) who is competent to contract under Indian laws (above 18 years of age, of sound mind, and not insolvent).
 2. **Service Provider: BADHEE G PRIVATE LIMITED**, having its registered office in Vikhroli West, Mumbai, Maharashtra.
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Recitals

- **Merchant's Business:** The Merchant is engaged in the business of manufacturing, developing, or selling various goods.
- **Service Provider's Business: BADHEE G PRIVATE LIMITED** operates an e-commerce platform for independent third-party retailers and manufacturers. It provides services such as technical support, website design, order processing, customer service, billing, and payment management.

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- **Objective:** The Merchant has approached **BADHEE G** to utilize its e-commerce services to grow their business, and **BADHEE G** has agreed to this.
- **Shared Goal:** Both parties acknowledge that the platform's success depends on the general public and consumers viewing this online marketplace as a reliable platform for buying and selling.
- **Agreement:** Both parties agree to be legally bound to conduct business with each other based on the terms and conditions recorded in this contract.

Key Point: This contract clarifies that **BADHEE G** will provide you with a digital platform and technical assistance to sell your goods, and you will use their services as an independent Merchant.

1. Definitions

- **Affiliate:** Any person or entity that directly or indirectly controls, is controlled by, or is under common control with a Party. "Control" means ownership of a large portion of voting shares or the constitution of the Board of Directors.

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- **Brand:** Refers to "**BADHEE G™**" or any other name the Service Provider may choose in the future.
- **Confidential Information:** Includes all confidential business information, processes, samples, advertising plans, technical and financial data, and customer-related information of the parties. In the case of the Service Provider, this also includes the 'End Customer Database'.

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- **Consumer Care Mechanism:** The process for resolving customer complaints and issues as specified by the Service Provider from time to time.
- **Consumer Protection Act:** Refers to the 'Consumer Protection Act, 2019' and all rules and amendments made thereunder.
- **Deliverables:** Specific materials, products, or services provided by the Merchant to the Service Provider under this agreement.

- **End Customer:** Retail customers who wish to purchase or do purchase the Merchant's products through the platform.
- **End Customer Database:** All data related to customers visiting the platform, including names, addresses, contact details, orders placed, behavior, and purchasing trends. This database is considered the Intellectual Property of the Service Provider.
- **Intellectual Property:** Includes ideas, inventions, trademarks, logos, designs, copyrights, software code, databases, and trade secrets.
- **Payment Facilitation Services:** Assisting in receiving the Sale Price on the platform (e.g., Cash on Delivery services).
- **Platform:** The website (URL) that uses the 'Brand Name' (such as BADHEE G).
- **Platform Services:** An internet-based electronic platform that acts as an intermediary in the purchase and sale of goods.
- **Product:** All goods or services of the Merchant that are listed for sale on the platform.
- **Sale Price:** The price at which the Merchant sells goods to the customer through the platform. This price is dynamic, and the Merchant may change it from time to time.
- **Service Fees:** Fees paid for availing the services of the Service Provider under this agreement.
- **Service Provider Content:** All pages, designs, text, photos, videos, and graphics of the platform that are owned or controlled by the Service Provider.
- **Term:** The time period for which this agreement remains effective.
- **Territory:** This means the entire world.

E-Commerce Merchant and Service Provider Agreement

1. Definitions (Transaction Support Services)

"Transaction Support Services" means services that assist the Merchant (Seller) in selling goods to the customer. This includes:

- Product Listing.
- Fulfillment Support.
- Logistics/Delivery Management.
- Customer Support and other services as agreed upon by both parties.

2. Interpretation

- **2.1 Person/Party:** Includes natural persons, companies, partnership firms, organizations, HUF, trusts, LLP, etc.
- **2.2 Number:** Words in the singular shall include the plural and vice versa.
- **2.3 Law:** Any reference to a law shall refer to the amended or applicable law at that time.
- **2.5 "Includes":** This means the provided list is for example purposes only and is not limited.
- **2.8 Written and Signature:** This includes emails, electronic forms, and digital signatures.

3. Services

- **3.1** The Merchant appoints the Service Provider to sell the Merchant's products on its platform. This shall be in accordance with the "Commercial Terms" and platform policies (such as the Privacy Policy).
- **3.2** The Service Provider is free to provide its services in any territory and at any price at its own discretion.
- **3.3** The Service Provider has the right to refuse service to the Merchant for any reason (such as defamation or violation of law).
- **3.4 Warehousing and Logistics:** The Merchant has the option to choose or not choose the Service Provider's warehousing services. They can change this at any time by providing a written notice.

4. Advertising and Marketing

- **4.1** The Service Provider may advertise to promote the platform. The Merchant may cooperate by providing discounts or free gifts.
- **4.3** If the Merchant feels any advertisement is against the law, they shall inform the Service Provider along with a legal opinion, and the Service Provider shall stop it.
- **4.4** The Service Provider has full rights over the design, layout of the platform, and how products will be ranked.

- **4.5** All earnings from advertisements shown on the platform shall belong to the Service Provider.

Gemini said

Here is the English translation of the remaining sections of the agreement:

5. Customer Database

- **5.1** All customer data is the sole property of the Service Provider. The Merchant may use this data only to fulfill orders and is prohibited from selling or transferring it to any third party.

6. Payment Terms

- **6.1** The Merchant shall pay a "Service Fee" to the Service Provider as decided in the "Commercial Terms." These fees may be modified via email through mutual consent based on market conditions.
- **6.2** The Service Provider has the right to deduct its fees from the amount received from the customer. If it is unable to do so, the Merchant must make the payment within 10 days of receiving the bill.

7. Additional Responsibilities of the Service Provider

- **7.1** To operate the platform smoothly and provide support in logistics.
- **7.2** To maintain the registration of the website (domain name).
- **7.3** To maintain contracts with payment gateways so that customer payments can be processed.
- **7.5** To list products at the price provided by the Merchant. The Merchant can change the price at any time (verbally or in writing).

8. Responsibilities and Warranties of the Merchant (Seller)

- **8.2 Stock:** The Merchant must maintain sufficient stock of goods and hand them over to the Service Provider on time upon receiving an order.
- **8.4 Sale Price:** The Sale Price must include all taxes, packaging, and delivery charges. This price cannot exceed the MRP.
- **8.5 After-Sales:** Responsibility for post-sale warranty and repairs lies solely with the Merchant.

- **8.6 Inspection:** The Service Provider may inspect the Merchant's warehouse or factory at any time.
- **8.8 Branding:** The Merchant shall not print any brand name other than the Service Provider's on the packaging.
- **8.10 Legal Metrology:** The Merchant is responsible for the accuracy of all information provided on the goods (weight, purity, etc.).
- **8.12 Invoicing:** The Merchant must provide a series of invoice numbers. The Service Provider will issue bills to customers on behalf of the Merchant.
- **8.14 Title to Goods:** Ownership and the risk of loss/damage remain with the Merchant until the goods are delivered to the customer.
- **8.16 Relationship:** The Merchant shall not claim to be an agent or partner of the Service Provider. The relationship is that of an "Independent Contractor."
- **8.18-8.20 Trademarks:** The Merchant shall not misuse the Service Provider's brand name or trademarks.
- **8.22-8.23 Grievance Redressal:** The Service Provider's Grievance Officer will be deemed the officer for the Merchant. Their decision regarding refunds or returns on customer complaints will be binding on the Merchant.
- **8.24 Unfair Trade Practices:** The Merchant shall not adopt any unfair trade practices or write fake reviews for their own products.

9. Intellectual Property (IP)

- **9.1 Brand Name:** The Merchant acknowledges the Service Provider's absolute ownership of the Brand Name and Platform. All goodwill generated belongs exclusively to the Service Provider.
- **9.2 Content:** The Service Provider retains ownership of its business and content. If the Merchant provides any information or photos, they grant the Service Provider a free license to use and modify them.

10. Confidentiality

- **10.2 Terms:** Both parties shall keep each other's confidential information secure. It shall not be disclosed to any third party except to employees on a "need-to-know" basis.
- **10.4 Return of Data:** Upon termination or request, all confidential information and documents must be returned or destroyed.
- **10.5 Privacy:** The Merchant's personal data will be protected according to the platform's Privacy Policy.

11. Indemnification and Limitation of Liability

- **11.1 Merchant's Liability:** The Merchant shall indemnify the Service Provider against any loss or legal claims arising from the Merchant's fault, fraud, or breach of law.
- **Right of Recovery:** If the Merchant fails to compensate, the Service Provider may sell the Merchant's goods or withhold funds from the payment gateway to recover losses.
- **11.2 Service Provider's Limit:** The Service Provider is not liable for indirect losses (e.g., loss of profit). Its maximum liability is limited to the fees paid by the Merchant in the last 12 months or the cost of the products sold.

12. Other Warranties

- **12.1** Both parties warrant that they are legally competent and this agreement does not violate any other law or contract.
- **12.3** The platform is provided on an "As Is" basis; there is no separate guarantee for its performance.

13. Term and Termination

- **13.1** This agreement remains valid until terminated.
- **13.2** Either party can terminate this agreement by giving a **30-day written notice**.
- **13.3** The Service Provider can terminate immediately if the Merchant becomes insolvent or shuts down their business.

14. Consequences of Termination

- **14.1** All confidential data must be returned upon termination.
- **14.3 Survival:** Clauses related to IP, Confidentiality, and Dispute Resolution will continue to apply even after termination.

15. Governing Law

- **15.1** This agreement is governed by the **laws of India**. Only the **courts in JAIPUR** shall have exclusive jurisdiction over any legal matters.

- **17.1 Independent Contractor:** The relationship between the parties is on a principal-to-principal basis. It does not constitute a partnership, joint venture, or employer-employee relationship; both are independent business entities.

- **17.2 Notices:** Any notice, consent, or waiver must be in writing and delivered by hand, courier, or email. The Service Provider's address for correspondence is located in **Sikar, Rajasthan**.
- **17.4 Assignment & Sub-contracting:** The Merchant cannot assign or transfer their rights or obligations to anyone else without prior written consent. However, the Service Provider has the right to sub-contract its work to third parties.
- **17.6 Amendments:** The Service Provider reserves the right to change the terms of the agreement or fees at any time by updating the platform. The Merchant is advised to check the terms regularly. Continued use of the platform will be deemed as unconditional acceptance of the new terms.
- **17.7 Severability:** If any provision of this agreement is found to be invalid or unenforceable by a court, that part will be modified or removed, but the rest of the agreement will remain valid and in effect.

Note: This translation covers the concluding sections of your agreement. Let me know if you need any other parts translated.